

August 10, 2026
Dept. 9
Probate Tentative Rulings

12.	25PR0108	ESTATE OF GERTRUDE PEARL JENNER
FINAL DISTRIBUTION HEARING		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON AUGUST 31, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 10, 2026.

Letters Testamentary were issued on June 23, 2025, granting Petitioner full authority under the Independent Administration of Estates Act.

A Final Inventory and Appraisal was filed on July 14, 2025. Decedent owed no real property at the time of death and thereby no change of ownership statement was filed as provided in section 480 of the California Revenue and Taxation Code.

Waivers of Account were executed by all the heirs entitled to distributions under the estate. No Waivers of Notice were executed.

Proof of Service of Notice of the hearing on the Petition was filed on July 1, 2026. No one has filed a request for special notice in this proceeding.

The proposed distribution of the estate includes 100% to Phyllis A. Smith and Stephen M. Jenner as Co-Trustees of the Earle and Gertrude Jenner 1991 Trust.

Per Local Rule 10.07.12 Petitions for final distribution must include a report of the following:

1. That no federal or California estate taxes are payable or that they have been paid;
2. That income taxes and all other taxes (e.g. supplemental real property taxes or personal property taxes, if any, have been paid or otherwise provided for.

If estate taxes are payable or paid: 1) the petition shall set forth whether said taxes were prorated pursuant to Probate Code section 20100, et seq., or the provisions of the will; and 2) the petition must reflect whether or not there are non-probate assets includable in the gross estate for estate tax purposes.

Petitioner confirms that no federal or California estate taxes are payable, nor are any California or federal income or personal property taxes payable.

The Petition requests:

1. The administration of the estate be brought to a close;
2. The Waivers of Accounting of Petitioner as Personal Representatives are allowed;

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3. All the acts and proceedings of Petitioners as Personal Representatives as alleged in the Petition be confirmed and approved;
4. All creditor claims not properly filed with the court and served on the estate be barred;
5. Personal Representative be authorized and directed to pay her attorney, Clara Yang, \$12,412.84 for statutory fees for her legal services to the Personal Representatives and to this estate;
6. Personal Representative be authorized and directed to pay herself \$12,412.84 for statutory fees for her services to this estate;
7. The residual property of the estate together with any other property of the decedent not now known or discovered should be distributed as follows: Phyllis A. Smith and Steven M. Jenner as Co-Trustees of the Earle and Gertrude Jenner 1991 Trust; and
8. **Upon filing of receipts and the Ex Parte Petition for Discharge, Petition may be discharged and released from all liability that may be incurred thereafter.**

TENTATIVE RULING #12:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, AUGUST 9, 2027, IN DEPARTMENT NINE BY WHICH TIME THE COURT EXPECTS RECEIPTS AND AN EX PARTE PETITION FOR FINAL DISCHARGE (JUDICIAL COUNCIL FORM DE-295) TO BE FILED WITH THE COURT. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.